RABBI BINYAMIN GOLDBERG

Hilchos Shabbos Shiur 17

Shiur

17

הלכות שבת · אורח חיים סימן רנ"ח

Mareh Makomos for this shiur

Siman 258 – Mechaber

Magen Avraham 1

Taz 1

Mishna Berura 1 – 2

Pri Megadim – Eshel Avraham 1, Mishbetzos Zahav 1

Biur Halacha ד"ה מותר להניח מבעוד יום, ד"ה שאין זה כטומן

See siman 253:1; 257:6 and 257:8; siman 318:6 – 8, 13 – 15

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A Cold Item on a Hot Pot

Simon 258

Seif 1 סעיף א

BASIS OF THIS SEIF Hatmana | Shehiya | Cooking

- A hot pot is not in the category of things that add heat, since it has no heat of its own and keeps cooling (Bais Yosef, cited in Taz 1 and MB 2).
- Putting the cold item there on Shabbos under a covering is forbidden, since he generates heat through burying; on Shabbos burying cold food is permitted only to take off its chill (MB 2; see 257:6).
- Inserting a utensil of cold drink entirely into hot water on Shabbos is forbidden, since it is the manner of burying, and burying is forbidden even for a short time (Taz 1; MB 2).
- If the lower pot stands on the fire, the fire makes the arrangement add heat (257:8): covering them with clothes is forbidden even before Shabbos because of hatmana, and uncovered it has the law of shehiya, so the cold item must be cooked like the food of Ben Drusai before dark according to the Rama in 253 (MA 1; Biur Halacha ד"ה מותר להניח מבעוד יום).

Melacha: Named: cooking (MB 2, lest he forget until the hand recoils; see 318:14).

Background *(general; not stated in the seif): Cooking – compare* אופה *#11.*

Why a Hot Pot Is Not "Something That Adds Heat"

HALACHA 258:1

Siman 257 forbade burying in anything that adds heat even before Shabbos. This siman draws the line: a hot pot is not in that category. The Bais Yosef gives the reason – the pot adds no heat of its own; on the contrary, its heat keeps diminishing (Taz 1; MB 2). Pomace and the like generate heat by themselves; a pot only loses what it has.

This leniency goes quite far. Even if the cold item is raw **1)** and will now cook from the heat of the pot beneath it, it is permitted, since he puts it there while it is still day (MB 1). And even if he then covers both the utensil and the pot with clothes – so that heat is certainly added to the cold item – it is still permitted, for the reason above (MB 2).

Two Limits

The first limit is the day. All this is while it is still day. To put the cold item on the pot *on Shabbos*, under the clothes covering it, so that it will warm, is forbidden – even if the heat could never reach the point where the hand recoils. On Shabbos they permitted burying something cold only in something that does not add heat, and only so that it will not cool further or so that its chill will be taken off (257:6); here, says the Mishna Berura, he generates heat through burying, which is forbidden. If the pot is not covered with clothes, there is no prohibition in putting the cold item on it, except where it could become hot enough that the hand recoils, as in 318:6 (MB 2).

The second limit is the manner **2)**. The **Taz** (1) argues that the Bais Yosef's reason – that the pot cools – holds only where he buries it for many hours, long enough for the pot to cool before he takes it out. If he buries it for a short time and takes it while the pot is still hot, it is in any case something that adds heat. He therefore objects to a winter practice: taking a utensil with a drink in it and inserting it on Shabbos into a utensil full of hot water to take off its chill, and then drinking it. "This is literally the manner of burying, since it is entirely buried inside it," and burying is forbidden even for a short time. In his view, the whole leniency of our seif is that the utensil is not buried inside the pot but merely placed on it – and that is what "this is not like burying" means.

The Acharonim, cited in the Mishna Berura, rule accordingly: it is forbidden to insert a utensil of cold drink into a utensil of hot water on Shabbos so that it will warm inside it, even if it could never reach the point where the hand recoils, since it is entirely buried inside. And if the water is hot enough that it could reach that point, it is forbidden even when the utensil is uncovered on top and his intent is only to take off the chill, lest he forget until the hand recoils and he be liable for cooking, as in 318:14 (MB 2).

When the Lower Pot Is on the Fire

The **Magen Avraham** (1) adds that if the lower pot stands on the fire, the upper one has the law of *shehiya*, governed by siman 253. The **Biur Halacha** (ד"ה מותר להניח מבעוד יום) spells this out: with fire beneath, the arrangement does add heat, as in 257:8. Therefore it is forbidden even before Shabbos to cover them with clothes on top, because of *hatmana*; and if he does not cover them with clothes, it has the law of *shehiya*, so according to the Rama in 253 the cold item must be cooked like the food of Ben Drusai before dark.

The **Biur Halacha** (ד"ה שאין זה כטומן) discusses whether doing this in the manner of *hatmana* on Shabbos is forbidden even where the hand could never recoil. He proves from the Ran in the name of Rabbeinu Yonah, and from the Gra, that it is; the Pri Megadim implies otherwise – though the Biur Halacha rejects that reading of the Bais Yosef and follows the Tosefes Shabbos and the Gra. He also notes a tension in the Bais Yosef: here he reasons that the pot cools, while in 257 he rules that standing a pot on a banked *kirah* counts as burying in something that adds heat, even though the *kirah* too cools on its own – against Rashi. The Maamar Mordechai raised this, and the answer must be that a *kirah*'s heat is far greater.

The Pri Megadim (EA 1) maps the cases: if the upper pot touches the lower one even partly, or stands in the air above it, and is covered with clothes, it is forbidden as *hatmana* (257:8). If the upper one is uncovered, then even if part of it is buried in the lower one, it is possible that this is not *hatmana* even according to the Mechaber – and certainly according to the Rama in 253:1, as long as it is not entirely buried. In the Mishbetzos Zahav (1) he works through the Taz's new ruling at length, concluding that even in a *kli sheni* the hot water counts as adding heat "for the moment."

SHULCHAN ARUCH & MEFORSHIM

שמותר להשים ערב שבת דבר קר על קדירה חמה. ובו סעיף אחד

מותר להניח מבעוד יום כלי שיש בו דבר קר על גבי קדירה חמה, שאין זה כטומן בדבר המוסיף הבל:

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1 It is permitted to put, while it is still day, a utensil containing something cold 1) on top of a hot pot, for this is not like burying 2) in something that adds heat.

COMMENTARIES, IN ORDER OF THE TEXT

A hot pot — **דבר קר על גבי קדירה חמה**

MAGEN AVRAHAM 1 — **מגן אברהם (א)**

קדירה חמה. ואם הקדירה התחתונה עומדת ע"ג האש יש לה דין שהיה ועסי' רנ"ג:

A hot pot. And if the lower pot stands on the fire, it has the law of leaving; see siman 253.

PRI MEGADIM (ESHEL AVRAHAM) 1 on Magen Avraham 1 **פרי מגדים – אשל אברהם (א)**

קדירה עמ"א עט"ז א' דבאין אש מתקרר וכשיש אש הוי מוסיף הבל הלכך אם עליונה נוגעת בתחתונה במקצת או אפילו באויר ומכוסה עליונה בבגדים אסור בהטמנה כבסי' רנ"ז ס"ח ואם עליונה מגולה אף אם טמונה מקצתה בתחתונה אף להמחבר אפשר שאין זה הטמנה וכ"ש להר"ב ברנ"ג ס"א כל שאין כולה טמונה

A pot – on the Magen Avraham. See Taz 1: when there is no fire it cools, and when there is fire it adds heat. Therefore, if the upper [pot] touches the lower one partly, or even [stands] in the air and the upper one is covered with clothes, it is forbidden because of burying, as in siman 257:8. And if the upper one is uncovered, even if part of it is buried in the lower one, even according to the Mechaber it is possible that this is not burying – and all the more so according to the Rav in 253:1, whenever it is not entirely buried.

מיהו דין שהייה יש לעליונה אע"ג דהקדירה תחתונה מפסקת וברנ"ג ס"ג קדירה ריקנית הוי גרופה כמ"ש מ"א אות ל"א זה ריקנית וצוננת משא"כ כשתחתונה חמה ע"ג אם יש לעליונה ג"כ דין שהייה על פי דרכים שנתבארו ברנ"ג ס"א ועיין סי' שי"ח סעיף וז"ח וברנ"ג ס"ה וא"ה יבואר בשי"ח וכאן אין להאריך:

However, the upper one has the law of leaving, even though the lower pot separates. And in 253:3, an empty pot counts as swept, as the Magen Avraham wrote in paragraph 31 – that is an empty and cold [pot]; not so when the lower one is hot and on [the fire]: if so, the upper one also has the law of leaving, according to the ways explained in 253:1. And see siman 318, seifim 6, 7 and 8, and 253:5. With Hashem's help it will be explained in 318; here there is no need to elaborate.

שאין זה כטומן בדבר המוסיף הבל

For this is not like burying in something that adds heat

TAZ 1 **ט"ז (א)**

שאין זה כטומן בדבר המוסיף הבל. ב"י כ' הטעם שהרי אין הקדירה חמה מוספת הבל אדרבה חומה מתמעט והולך עכ"ל.

For this is not like burying in something that adds heat. The Bais Yosef wrote the reason: "For the hot pot does not add heat; on the contrary, its heat keeps diminishing" – end quote.

ונראה לי שאין בכלל זה אלא מה שרוצה להטמין לשעות הרבה שאפשר שתתקרר הקדירה קודם כלות הזמן ההוא אבל אם רוצה להטמין לשעה מועטת וליקחו משם בעוד הקדירה חמה אסור דהוי דבר המוסיף הבל על כל פנים

And it seems to me that this is included only [where] he wants to bury it for many hours, so that the pot may cool before the end of that time. But if he wants to bury it for a short time and take it from there while the pot is still hot, it is forbidden, for it is in any case something that adds heat.

וע"כ לא יפה עושים שבימות החורף לוקחים כלי בתוכו משקה ותוחבין אותו בשבת לתוך כלי מלא מים חם שיפיג צנתו בתוכו ואח"כ שותין המשקה שזהו דרך הטמנה ממש כיון שכולו טמון בתוכו והטמנה אסורה אפי' לזמן מועט ועיקר טעם ההיתר כאן כיון שאינו טמון בתוכו ממש רק מונח עליו וע"ז כתב הטור וש"ע שאין זה כטומן כו' פי' שאין כאן דרך הטמנה כנ"ל ועמ"ש בסי' שי"ח סי"ג:

Therefore those who in the winter take a utensil with a drink in it and insert it on Shabbos into a utensil full of hot water, so that its chill will be taken off inside it, and afterwards drink the drink, do not do well – for this is literally the manner of burying, since it is entirely buried inside it; and burying is forbidden even for a short time. And the main reason for the leniency here is that it is not actually buried inside it, but only placed on it. And on this the Tur and the Shulchan Aruch wrote "for this is not like burying etc." – meaning, there is no manner of burying here. So it seems to me. And see what I wrote in siman 318:13.

PRI MEGADIM (MISHBETZOS ZAHAV) 1 on Taz 1 **פרי מגדים – משבצות זהב (א)**

שאין עט"ז הב"י לשיטתיה דנוגע במקצת בגחלים או במוסיף הבל הוי הטמנה וכמ"ש בחה"ר ריש במה טומנין בקופה שטמן בה כו' דכל שדבוקין במוסיף הבל בגפת הטמנה במקצת הוי הטמנה משה"ה הוצרך לטעם דמתקרר והיינו כשאין אש תחתיה ובשבת אסור אם יתחמם שיס"ב מכ"ר נמצא מבשל בשבת משא"כ אם א"א שיס"ב בעליונה אף בשבת מותר צונן בשבת שאין מוסיף הבל כבסי' רנ"ז סעיף וי"ו יע"ש ועיין סימן שי"ח סעיף וז"ח וסי"ג וט"ו.

For this is not – on the Taz. The Bais Yosef follows his approach, that [a pot] touching coals partly, or something that adds heat, is burying – as written in the Chiddushei HaRan at the beginning of Bameh Tomnin regarding a basket in which he buried [food] etc., that whenever they are attached to something that adds heat, to pomace, partial burying is burying. Therefore he needed the reason that it cools, and that is when there is no fire beneath it. And on Shabbos it is forbidden if it will become hot enough that the hand recoils from it in a kli rishon, for it turns out that he cooks on Shabbos. Not so if it is impossible for the hand to recoil from the upper one: even on Shabbos cold [food] is permitted in something that does not add heat, as in siman 257:6; see there. And see siman 318, seifim 6, 7 and 8, 13 and 15.

והנה הט"ז ז"ל חידש בכאן דין ח' והוא דודאי כלי שיש בו מים חמין אף בכלי שני שיס"ב כ"ש כירה גרופה וקטומה אע"ג דאם טומן בהם דבר מה לזמן מרובה לשעה או שתים לא הוי כמטמין במוסיף ~הכל~{הבל} דהא יתקרר מעט מעט והטמנה בגילוי דעת מהני ורואין שאין כוונתו להוסיף הבל אז שרי אפי' כולו טמון בה משא"כ כשטומן לזמן מועט ורוצה שיתחמם בה ודאי מיקרי מוסיף הבל אף בכלי שני דלפי שעה מוסיף הוא ודאי והחוש מעיד על זה א"כ לא יפה עושים שמטמינים כלי קר כולו בתוך מים חמין בכלי שני דהוי הטמנה אף לדידן בכולו טמון בה ומוסיף הבל מיקרי לפי שעה ואסור אף בכלי שני כמ"ש בשי"ח אות י"ט ובכ"ר בלא"ה יש בו דין בישול.

Now the Taz, of blessed memory, introduced a new law here, דין ח', and it is this: certainly a utensil containing hot water – even a kli sheni in which the hand recoils, and all the more so a swept and banked kirah – although if he buries something in them for a long time, for an hour or two, it is not like burying in something that adds heat, since it will cool little by little, and burying with a revealed intent helps, and we see that his intent is not to add heat, [and] then it is permitted even if it is entirely buried in it – not so when he buries it for a short time and wants it to become warm in it: it is certainly called adding heat, even in a kli sheni, for at that moment it certainly adds, and the senses testify to this. If so, those who bury a cold utensil entirely inside hot water in a kli sheni do not do well, for it is burying – even for us, since it is entirely buried in it – and it is called adding heat for the moment, and it is forbidden even in a kli sheni, as written in 318 paragraph 19; and in a kli rishon there is in any case the law of cooking.

ולפ"ז פירוש מ"ש בטור שאין זה כטומ"ן במוסיף הבל משום דכל שמקצתו מגולה לאו הטמנה הוא לדידן כבסי' רנ"ג ס"א כו' בנוגעים בגחלים ומש"ה לא כתב הר"ב כאן כלום ואף התחתונה על האש נמי עליונה מגולה לא הוי הטמנה רק שהייה כמ"ש המ"א ועא"ר כאן ולמ"ש א"ש וא"ה ברנ"ט יבואר בדיני הטמנה מזה וכאן אין להאריך:

According to this, the explanation of what the Tur wrote, "for this is not like burying in something that adds heat", is because whatever is partly uncovered is not burying for us, as in siman 253:1 etc., [even] when they touch the coals. Therefore the Rav did not write anything here. And even [if] the lower one is on the fire, if the upper one is uncovered it is not burying, only leaving, as the Magen Avraham wrote; and see the Eliya Rabba here. And according to what I wrote it works out well. With Hashem's help it will be explained in 259 in the laws of burying; here there is no need to elaborate.

MISHNA BERURA ON THIS SEIF

MISHNA BERURA 1 משנה ברורה (א)

דבר קר – ואפילו הוא דבר חי ויתבשל עתה ע"י חום הקדירה שתחתיה ג"כ שרי כיון שמניח מבע"י:

Something cold – And even if it is something raw and it will now cook through the heat of the pot beneath it, it is also permitted, since he puts it [there] while it is still day.

MISHNA BERURA 2 משנה ברורה (ב)

שאין זה כטומן וכו' – ר"ל אפילו כסה אז הכלי והקדרה בבגדים ובודאי ניתוסף חום על הדבר קר ע"י הקדרה אפ"ה שרי דלא חשיב הקדרה כגפת ודומה לה המוסיפין הבל דהתם הוא מוסיף הבל מחמת עצמו אבל הקדרה אין לה הבל מעצמה ואדרבה כל שעה חומה מתמעט והולך ולהכי שרי

For this is not like burying etc. – Meaning, even if he then covered the utensil and the pot with clothes, and heat is certainly added to the cold item through the pot, even so it is permitted. For the pot is not considered like pomace and the like that add heat: there it adds heat by itself, but the pot has no heat of its own, and on the contrary, its heat keeps diminishing all the time; therefore it is permitted.

ודוקא להניח הדבר קר מבע"י אבל להניחו בשבת על הקדרה תחת הכיסוי בגדים שעליה שיתחמם אסור ואפילו אין החום כ"כ שיוכל לבוא ליד סולדת בו דבשבת לא התירו להטמין את הצונן אלא כדי שתפיג צינתו אבל בזה שמוליד חום ע"י הטמנה אסור ואם אין הקדרה מכוסה בבגדים אין איסור להניח עליו הדבר קר אלא כשיוכל לבוא לידי יד סולדת בו וכדלקמן בסימן שי"ח ס"ו.

And this is specifically to put the cold item [there] while it is still day. But to put it on the pot on Shabbos, under the clothes covering it, so that it will warm, is forbidden – and even if the heat is not so great that it could reach [the point where] the hand recoils from it. For on Shabbos they permitted burying something cold only so that its chill will be taken off; but in this case, where he generates heat through burying, it is forbidden. And if the pot is not covered with clothes, there is no prohibition in putting the cold item on it, except where it could reach [the point where] the hand recoils from it, as below in siman 318:6.

כתבו האחרונים שאסור ליקח כלי ובתוכו משקה צונן ולתחוב אותו בשבת לכלי מלא מים חמין שיתחמם בתוכו אפילו לא יוכל לבוא לידי יד סולדת בו שזהו דרך הטמנה ממש כיון שכולו טמון בתוכו אבל אם חם כ"כ שיוכל לבוא לידי יד סולדת בו או אפילו אינה טמונה

כולה בתוכו שמגולה למעלה וגם אין כונתו רק להפיג הצינה בלבד אפ"ה אסור פן ישכח עד שיהיה היד סולדת בו ויתחייב משום מבשל וכדלקמן בסי' שי"ח סי"ד:

> The Acharonim wrote that it is forbidden to take a utensil with a cold drink in it and insert it on Shabbos into a utensil full of hot water so that it will warm inside it – even if it could not reach [the point where] the hand recoils from it, for this is literally the manner of burying, since it is entirely buried inside it. But if it is so hot that it could reach [the point where] the hand recoils from it, then even if it is not entirely buried inside it, being uncovered on top, and even if his intent is only to take off the chill, it is nevertheless forbidden, lest he forget until the hand recoils from it and he be liable for cooking, as below in siman 318:14.